

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JUANITA BROWN-EVANS,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE JOSE RODRIGUEZ, Shield No. 006634, SERGEANT GENE MCHUGH, LIEUTENANT MICHAEL COSTELLO, Tax No. 906013, DETECTIVE SHANE GUGLIUCCIello, Tax No. 921406, POLICE OFFICER CHRISTOPHER GOLDRICK, Tax No. 945197 and POLICE OFFICERS JOHN DOES #1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 25, 2015

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE JOSE RODRIGUEZ, Shield No. 006634, Bronx Gang Squad, One Police Plaza, Room 1100, New York, NY 10038
SERGEANT GENE MCHUGH, Bronx Gang Squad, One Police Plaza, Room 1100, New York, NY 10038
LIEUTENANT MICHAEL COSTELLO, Tax No. 906013, Bronx Gang Squad, One Police Plaza, Room 1100, New York, NY 10038
DETECTIVE SHANE GUGLIUCCIello, Tax No. 921406, Bronx Gang Squad, One Police Plaza, Room 1100, New York, NY 10038
POLICE OFFICER CHRISTOPHER GOLDRICK, Tax No. 945197, Bronx Gang Squad, One Police Plaza, Room 1100, New York, NY 10038

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MCHUGH, LIEUTENANT MICHAEL COSTELLO, Tax
No. 906013, DETECTIVE SHANE GUGLIUCCIello,
Tax No. 921406, POLICE OFFICER CHRISTOPHER
GOLDRICK, Tax No. 945197 and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JUANITA BROWN-EVANS, by her attorneys, Jacobs & Hazan, LLP, as and
for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections
1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to
the United States Constitution, and the common law and the laws of the State of New York. On
December 19, 2013, at approximately 5:00 a.m., plaintiff, Juanita Brown-Evans, while lawfully
inside of her apartment located at 1165 Evergreen Avenue, Apt. A2, Bronx, New York, was
subject to an unlawful search, detention, false imprisonment and false arrest by the defendant
New York City police officers. Thereafter, plaintiff was maliciously prosecuted and denied a
right to a fair trial. Plaintiff was also subjected an assault and battery by the defendants.
Plaintiff was deprived of her constitutional and common law rights when the individual
defendants unlawfully searched, confined, arrested, imprisoned, denied his right to a fair trial,
maliciously prosecuted, and used excessive force against plaintiff in violation of the Fourth, Fifth
and Fourteenth Amendments to the United States Constitution.

PARTIES

2. On the date of the subject incident, plaintiff JUANITA BROWN-EVANS was a resident of the State of New York.

3. DETECTIVE JOSE RODRIGUEZ, Shield No. 006634, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE JOSE RODRIGUEZ, Shield No. 006634, is and was at all times relevant herein, assigned to Bronx Gang Squad.

5. DETECTIVE JOSE RODRIGUEZ, Shield No. 006634, is being sued in his individual and official capacity.

6. SERGEANT GENE MCHUGH, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT GENE MCHUGH, is and was at all times relevant herein, assigned to Bronx Gang Squad.

8. SERGEANT GENE MCHUGH, is being sued in his individual and official capacity.

9. LIEUTENANT MICHAEL COSTELLO, Tax No. 906013, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. LIEUTENANT MICHAEL COSTELLO, Tax No. 906013, is and was at all times relevant herein, assigned to Bronx Gang Squad.

11. LIEUTENANT MICHAEL COSTELLO, Tax No. 906013 is being sued in his individual and official capacity.

12. DETECTIVE SHANE GUGLIUCCIello, Tax No. 921406, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE SHANE GUGLIUCCIello, Tax No. 921406 is and was at all times relevant herein, assigned to Bronx Gang Squad.

14. DETECTIVE SHANE GUGLIUCCIello, Tax No. 921406, is being sued in his individual and official capacity.

15. POLICE OFFICER CHRISTOPHER GOLDRICK, Tax No. 945197, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. POLICE OFFICER CHRISTOPHER GOLDRICK, Tax No. 945197 is and was at all times relevant herein, assigned to Bronx Gang Squad.

17. POLICE OFFICER CHRISTOPHER GOLDRICK, Tax No. 945197, is being sued in his individual and official capacity.

18. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Police Officers John Does #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about October 17, 2014.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

28. On December 19, 2013, at approximately 5:00 a.m., plaintiff was lawfully inside of her apartment, located at 1165 Evergreen Avenue, Apt. A2, Bronx, New York.

29. The defendant police officers then unlawfully entered and searched the individuals present at 1165 Evergreen Avenue, Apt. A2, Bronx, New York, without reasonable suspicion, probable cause, or any legal justification.

30. At no time were any illegal drugs, guns, or contraband found in the apartment, or on plaintiff's person, or in plaintiff's possession, custody, or control.

31. At no time did plaintiff violate any law, commit any crime or violate the law in any way.

32. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

33. Nevertheless, handcuffed plaintiff, and was falsely arrested by the defendants and transported to the 43th precinct for arrest processing.

34. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer pain and discomfort.

35. Plaintiff told the defendant police officers that the handcuffs were hurting her wrists, and asked the defendant police officers to loosen the handcuffs, but the defendant police officers ignored plaintiff and failed to loosen the handcuffs.

36. The unreasonably tight handcuffs were the direct and proximate cause of the serious physical injuries to plaintiff's wrists.

37. When plaintiff arrived at the 43rd Precinct, she was photographed, fingerprinted and then placed in a holding cell by the defendants.

38. After several hours in custody at the 43rd precinct, plaintiff was given a Desk Appearance Ticket and was released from precinct.

39. Thereafter, the defendant police officers provided the District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

40. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

41. Plaintiff was unlawfully charged with Criminal Possession of a Controlled Substance in the Seventh Degree.

42. Thereafter, plaintiff appeared in Court on approximately 4 occasions before all charges were dismissed on June 27, 2014.

43. As a result of the unlawful search of plaintiff's apartment, plaintiff's property was damaged.

44. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search and seizure of plaintiff.

45. The unlawful search, false arrest, and false imprisonment, denial of a right to fair trial, malicious prosecution, and excessive force of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denial of his right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search plaintiff and her apartment.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Malicious Prosecution

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

62. Defendants commenced and continued a criminal proceeding against plaintiff.

63. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

65. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

67. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Juanita Brown-Evans. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

70. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

75. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

76. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

77. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

78. In withholding/creating false evidence against plaintiff Juanita Brown-Evans and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

79. As a result of the foregoing, plaintiff Juanita Brown-Evans, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Failure to Intervene

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

84. Defendants failed to intervene to prevent the unlawful conduct described herein.

85. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Assault

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Battery

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner pushed plaintiff down the stairs with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

93. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

94. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

ELEVENTH CAUSE OF ACTION

Negligence

95. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. Defendants owed a duty of care to plaintiff.

97. To the extent defendants claim that the injuries to plaintiff's person by the defendant police officers was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by accidentally and negligently putting the handcuffs on plaintiff's wrists in an unreasonably tight and painful manner, and assaulting and battering plaintiff.

98. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

99. All of the foregoing occurred without any fault or provocation by plaintiff.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELVTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

101. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The use of excessive force by defendants by, amongst other things, by tightly handcuffing plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

103. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

104. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Juanita Brown-Evans demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 25, 2015

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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POLICE OFFICER CHRISTOPHER GOLDRICK, Tax No. 945197, Bronx Gang Squad, One Police Plaza, Room 1100, New York, NY 10038

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 September 25, 2015

/s/
STUART E. JACOBS